CONTRACT: Mutual Non-Disclosure and Confidentiality Agreement #16
TYPE: NDA
PARTIES: Global Tech Ventures #16 Inc. and Enterprise Solutions Partner #16 LLC

Clause 1 - Definition of Confidential Information
For purposes of this Agreement, 'Confidential Information' shall include all information or mat
erial that has or could have commercial value or other utility in the business in which Disclos
ing Party is engaged.

Clause 2 - Exclusions from Confidentiality
Recipient's obligations under this Agreement do not extend to information that is: (a) publicly
known at the time of disclosure or subsequently becomes publicly known through no fault of the
Recipient; (b) discovered or created by the Recipient before disclosure by Disclosing Party; (
c) learned by the Recipient through legitimate means other than from the Disclosing Party; or (
d) is disclosed by Recipient with Disclosing Party's prior written approval.

Clause 3 - Obligations of Receiving Party
Recipient shall hold and maintain the Confidential Information in strictest confidence for the
sole and exclusive benefit of the Disclosing Party. Recipient shall carefully restrict access t
o Confidential Information to employees, contractors, and third parties as is reasonably requir
ed and shall require those persons to sign nondisclosure restrictions at least as protective as
those in this Agreement.

Clause 4 - Term and Termination
The non-disclosure provisions of this Agreement shall survive the termination of this Agreement
and Recipient's duty to hold Confidential Information in confidence shall remain in effect for
a period of five (5) years from the date of disclosure.

Clause 5 - Governing Law and Jurisdiction
This Agreement shall be construed and governed in accordance with the laws of the State of Dela
ware, without giving effect to any choice of law rule that would cause the application of the l
aws of any jurisdiction other than the laws of the State of Delaware.